

CHAPTER 65

An Act to amend the Fatal Accidents Act, 1846, and the Carriage by Air Act, 1932, by enlarging the class of persons for whose benefit an action may be brought thereunder, and to provide for certain benefits to be left out of account in assessing damages in such an action.
[29th July, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension
of classes of
dependants.
9 & 10 Vict.
c. 93.

1.—(1) The persons for whose benefit or by whom an action may be brought under the Fatal Accidents Act, 1846, shall include any person who is, or is the issue of, a brother, sister, uncle or aunt of the deceased person.

(2) In deducing any relationship for the purposes of the said Act and this Act—

- (a) an adopted person shall be treated as the child of the person or persons by whom he was adopted and not as the child of any other person; and, subject thereto,
- (b) any relationship by affinity shall be treated as a relationship by consanguinity, any relationship of the half blood as a relationship of the whole blood, and the stepchild of any person as his child; and
- (c) an illegitimate person shall be treated as the legitimate child of his mother and reputed father.

7 & 8 Eliz. 2.
c. 5.

(3) In this section "adopted" means adopted in pursuance of an adoption order made under the Adoption Act, 1958, or any previous enactment relating to the adoption of children, or any corresponding enactment of the Parliament of Northern Ireland; and for the purpose of any proceedings under the Fatal Accidents Act, 1846, an adoption authorised by any such order made in Scotland or Northern Ireland may be proved by the production of any document receivable as evidence thereof in that country.

25 & 26 Geo. 5.
c. 30.

(4) In section six of the Law Reform (Married Women and Tortfeasors) Act, 1935, there shall be substituted, for the words "wife, husband, parent or child" in paragraph (b) of subsection (1), the word "dependants", and for paragraph (a) of subsection (3) the following paragraph:—

"(a) the expression 'dependants' means the persons for whose benefit actions may be brought under the Fatal Accidents Acts, 1846 to 1959; and".

(5) In paragraph 1 of the Second Schedule to the Carriage by Air Act, 1932 (which specifies the persons for whose benefit actions in respect of a passenger's death may be brought under that Act) the following shall be substituted for the words from "In this paragraph" to the end of the paragraph:—

"(2) For the purposes of this paragraph the following shall be taken to be the members of the passenger's family, that is to say, the passenger's wife or husband, parents, grandparents, children and grandchildren and any person who is, or is the issue of, a brother, sister, uncle or aunt of the passenger.

(3) Subsection (2) of section one of the Fatal Accidents Act, 1959, shall apply in deducing any relationship for the purposes of this paragraph as it applies in deducing any relationship for the purposes of the Fatal Accidents Acts, 1846 to 1959, but as if it extended to the whole of the United Kingdom; and the definition of 'adopted' in subsection (3) of that section shall apply accordingly."

2.—(1) In assessing damages in respect of a person's death in any action under the Fatal Accidents Act, 1846, or under the Carriage by Air Act, 1932, there shall not be taken into account any insurance money, benefit, pension or gratuity which has been or will or may be paid as a result of the death.

Exclusion of certain benefits in assessment of damages.

(2) In this section—

"benefit" means benefit under the National Insurance Acts, 1946 (as amended by any subsequent enactment, whether passed before or after the commencement of this Act), or any corresponding enactment of the Parliament of Northern Ireland and any payment by a friendly society or trade union for the relief or maintenance of a member's dependants;

"insurance money" includes a return of premiums; and

"pension" includes a return of contributions and any payment of a lump sum in respect of a person's employment.

3.—(1) This Act may be cited as the Fatal Accidents Act, 1959; and the Fatal Accidents Act, 1846, the Fatal Accidents Act, 1864, and this Act may be cited together as the Fatal Accidents Acts, 1846 to 1959.

Short title, etc.
27 & 28 Vict.
c. 95.

(2) References in this Act to the Fatal Accidents Act, 1846, are references thereto as amended by and read together with the Fatal Accidents Act, 1864.

(3) The enactments specified in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(4) This Act shall apply only to actions brought in respect of deaths occurring after the commencement of this Act.

(5) The following provisions of this Act, that is to say, subsection (5) of section one, and so much of section two as relates to actions under the Carriage by Air Act, 1932, extend to Scotland and Northern Ireland, so much of section three and the Schedule as relates to the Law Reform (Personal Injuries) Act, 1948, extends to Scotland, and so much of that section and Schedule as relates to the Law Reform (Miscellaneous Provisions) Act (Northern Ireland), 1948, extends to Northern Ireland; but except as aforesaid this Act does not extend to Scotland or Northern Ireland.

Section 3.

SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
9 & 10 Vict. c. 93.	The Fatal Accidents Act, 1846.	In section five the words "and stepfather and step-mother" and "and stepson and stepdaughter".
8 Edw. 7. c. 7.	The Fatal Accidents (Damages) Act, 1908.	The whole Act.
24 & 25 Geo. 5. c. 41.	The Law Reform (Miscellaneous Provisions) Act, 1934.	Subsections (1) and (2) of section two.
11 & 12 Geo. 6. c. 41.	The Law Reform (Personal Injuries) Act, 1948.	Subsection (5) of section two.
12 & 13 Geo. 6. c. 23 (N.I.)	The Law Reform (Miscellaneous Provisions) Act (Northern Ireland), 1948.	In section three, in paragraph (a) of subsection (5), the words "or under the Carriage by Air Act, 1932".

